



CHAPTER xli.

An Act to empower the mayor aldermen and burgesses of the county borough of Tynemouth to construct waterworks and to acquire lands for those and other purposes to make further provision with respect to their water undertaking and with respect to the local government and improvement of the borough and for other purposes. [6th August 1947.]

WHEREAS the borough of Tynemouth (in the preamble to this Act referred to as "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (in the preamble to this Act referred to as "the Corporation"):

And whereas the Corporation are the owners of a water undertaking from which they are (under and in pursuance of the provisions of certain local Acts) required to and do supply and distribute water within the borough and within the urban districts of Ashington and Whitley Bay and from which undertaking they are (under and in pursuance of the provisions of certain of the said local Acts and of certain agreements) also required to supply and in certain cases do supply water in bulk to the local authorities of other districts in the neighbourhood of the borough for distribution by them:

And whereas with a view to ensuring that the Corporation shall be and continue to be in a position to meet their obligations in regard to the supply of water it is expedient that the Corporation should be empowered to construct the new water-work described in this Act and abstract water by means thereof and to acquire lands and easements for the purposes thereof and for the general purposes of their water undertaking:

And whereas it is expedient to make further provision with respect to the water undertaking of the Corporation:

And whereas it is expedient to confer upon the Corporation further powers with respect to the acquisition of lands the local government and improvement of the borough and the borrowing of money:

And whereas estimates have been prepared by the Corporation in relation to the following purposes in respect of which they are by this Act authorised to borrow money and such estimates are as follows:—

	£
For the construction of the waterwork by this Act authorised	15,000
For the purchase of lands for and in connection with the waterwork and for other purposes	70,000

And whereas the work included in such estimates is a permanent work and it is expedient that the cost thereof should be spread over a term of years as by this Act provided:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas plans and sections showing the lines situations and levels of the works authorised by this Act and plans of the lands authorised by this Act to be acquired or used and a book of reference to the said plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the town clerk of the borough and with the clerk of the county council of the administrative county of Northumberland and are in this Act respectively referred to as the deposited plans sections and book of reference:

23 & 24 Geo. 5. c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Tynemouth Corporation Act 1947.

2. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
- Part II.—Water.
- Part III.—Lands.
- Part IV.—Streets and buildings.
- Part V.—Human food.
- Part VI.—Finance.
- Part VII.—Miscellaneous.
- Part VIII.—General.

PART I.
—cont.
Act divided
into Parts.

3. The following Acts and parts of Acts (so far as they are Incorporation applicable for the purposes of and are not inconsistent with of Acts. the provisions of this Act) are hereby incorporated with and form part of this Act (that is to say):—

(a) The Lands Clauses Acts except sections 127 to 132 of the Lands Clauses Consolidation Act 1845 and the words 8 & 9 Vict. c. 18.
“with two sufficient sureties to be approved of by two justices in case the parties differ” in section 85 of that Act and except section 5 of the Lands Clauses Consolidation Acts Amendment Act 1860; 23 & 24 Vict. c. 106.

(b) The following provisions of the Third Schedule to the Water Act 1945:— 8 & 9 Geo. 6. c. 42.

Part I (Interpretation) except the definition of a supply of water for domestic purposes;

Part II (Works and lands) except section 7;

Part IV (Minerals underlying waterworks);

In Part VI (Breaking open streets &c.) sections 22 23 (except paragraph (b) of the proviso to that section) 24 26 27 and 28;

In Part XII (Water rates and charges) section 56:

Provided that—

(i) in and for the purposes of this Act the expression “the undertakers” or “the promoters of the undertaking” or “the company” used in such incorporated enactments shall mean the Corporation;

(ii) for the purposes of the said section 85 of the Lands Clauses Consolidation Act 1845 as incorporated with this Act the Corporation shall be deemed to be a railway company and section 36 (except paragraph (4) thereof) of the Railway Companies Act 1867 30 & 31 Vict. c. 127. shall apply accordingly;

(iii) for the purposes of the incorporated provisions of the Third Schedule to the Water Act 1945 section 2

PART I.
—cont.

of that schedule shall be read and have effect as if the expression "the deposited plans" were substituted for the expression "the plans submitted to the Minister" and the expression "the deposited sections" were substituted for the expression "the said plans" wherever the last-mentioned expression occurs in that section.

Interpretation.

4. In this Act unless the subject or context otherwise requires terms to which meanings are assigned by the Acts incorporated wholly or in part with this Act or which have therein special meanings have in this Act (unless varied thereby) the same respective meanings And—

"The borough" means the county borough of Tynemouth;

"The Corporation" means the mayor aldermen and burgesses of the borough;

"The town clerk" "the surveyor" "the medical officer" and "the sanitary inspector" mean respectively the town clerk the surveyor the medical officer and the sanitary inspector of the borough;

"The Lands Clauses Acts" means the Lands Clauses Acts as varied by the Acquisition of Land (Assessment of Compensation) Act 1919 and by Part II of the Town and Country Planning Act 1944;

"The water undertaking" means the water undertaking of the Corporation as from time to time authorised;

"The waterwork" means the work described in the section of this Act of which the marginal note is "Power to construct waterwork";

"Dockwray Square" means the lands in the borough which are numbered 83 on the deposited plans;

"Northumberland Square" means the lands in the borough which are numbered 63 on the deposited plans;

"Walker Place" means the lands in the borough which are numbered 64 on the deposited plans;

"The Act of 1897" and "the Act of 1934" mean respectively the Tynemouth Corporation (Water) Act 1897 and the Tynemouth Corporation Act 1934;

"The Act of 1933" means the Local Government Act 1933;

"The Act of 1936" means the Public Health Act 1936;

"The Minister" means the Minister of Health;

9 & 10 Geo. 5.

c. 57.

7 & 8 Geo. 6.

c. 47.

60 & 61 Vict.

c. cxx.

24 & 25 Geo. 5.

c. lxxvi.

26 Geo. 5. &

1 Edw. 8.

c. 49.

“ The tribunal ” means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919.

PART I.
—cont.

PART II.

WATER.

5.—(1) Subject to the provisions of this Act the Corporation may construct lay down and maintain in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections relating thereto respectively the following waterwork in the rural district of Morpeth in the county of Northumberland (that is to say):—

Power to
construct
waterwork.

An intake and pumping station beside the pool above the weir across the river Wansbeck near Highford Bridge in the parishes of Mitford and Tranwell.

(2) In addition to the work described in subsection (1) of this section the Corporation may upon in or under any lands delineated on the deposited plans relating to that work make or place and maintain all such shafts headings adits conduits pipes culverts overflows filters works for the treatment of water buildings pumping and other machinery plant electric lines works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the first-mentioned work or the water undertaking or necessary or expedient for augmenting or improving the supply of water but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them:

Provided that any electric lines works or apparatus made placed or maintained under this section shall be so constructed placed maintained and used as to prevent interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

41 & 42 Vict.
c. 76.

6. It shall be lawful for the Corporation at any point outside the limits of supply to make maintain and use junctions connections and communications between the waterwork and any mains pipes conduits aqueducts culverts or other works of the Corporation made or to be made:

Power to
Corporation
to make
junctions &c.

Provided that the provisions incorporated with this Act of Part VI of the Third Schedule to the Water Act 1945 shall apply to the breaking up of streets for the purpose of the

PART II.
—*cont.*

making maintenance and use of any such junctions connections or communications in any street.

Alteration of
position of
mains &c.

7. Subject to the other provisions of this Act the Corporation may for the purposes of and in connection with the waterwork and within the limits of deviation for such work shewn on the deposited plans raise sink or otherwise alter the position of or may remove any sewer drain gas or water main or pipe or electric line or any other obstruction of a like nature making in case of alterations proper substituted works in the meantime and causing as little detriment and inconvenience as circumstances admit and making compensation to any person who suffers damage by any such alteration or removal Provided that—

- (a) the powers of this section so far as they relate to works of a local authority (including a county council) shall not be exercised unless such exercise is reasonably necessary and any question as to whether or not the same is reasonably necessary shall be referred to arbitration;
- (b) nothing in this section shall extend to authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1935 to which the provisions of section 15 of the Electric Lighting Act 1882 and sections 17 and 18 of the schedule to the Electric Lighting (Clauses) Act 1899 apply otherwise than in accordance with such provisions; and
- (c) the Corporation shall not raise sink or otherwise alter the position of any telegraphic line (as defined in the Telegraph Act 1878) belonging to or used by the Postmaster-General except under and in accordance with the enactments numbered (1) to (8) in section 7 of the said Telegraph Act 1878.

45 & 46 Vict.
c. 56.
62 & 63 Vict.
c. 19.

Period for
completion
of work.

8. If the waterwork is not completed on or before the thirty-first day of December one thousand nine hundred and fifty-seven then as from that date the powers by this Act granted for the making of that work or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed:

Provided that the Corporation may at any time and from time to time extend enlarge alter reconstruct renew or remove the said work.

Waterwork
to form part
of water
undertaking.

9. The waterwork shall be deemed part of the water undertaking and shall be deemed to be a work or purpose properly chargeable to bulk supply account within the meaning of subsections (1) and (2) of section 22 of the Act of 1934.

10.—(1) Until an additional permanent supply of water from an impounding reservoir hereafter authorised by or under some enactment is effectively available in bulk to the Corporation at a point of supply conveniently situated in relation to the water undertaking the Corporation may by means of the waterwork by this Act authorised take use divert and appropriate for the purposes of the water undertaking water from the river Wansbeck and any question as to the permanence or availability for the purposes of this section of any additional supply of water or as to the convenience of the point or points of supply shall be determined by the Minister:

PART II.

—cont.

Temporary
abstraction of
water from
river
Wansbeck.

Provided that—

- (a) the quantity of water so taken in any one hour shall not exceed eighty thousand gallons;
- (b) during such time as the flow of water in the said river shall be less than at the rate of three million five hundred thousand gallons per day of twenty-four hours the Corporation shall not be entitled to take any water therefrom;
- (c) no water shall be so taken during working hours on a day on which the number of persons and machines necessary for performing normal processes of manufacture at the mills known as Abbey Mills Mitford are working and in operation.

(2) In this section the expression “ working hours ” means the hours between eight in the morning and five in the afternoon on a weekday except a Saturday and between eight in the morning and twelve noon on a Saturday.

(3) Before taking any such water the Corporation shall construct on approved sites approved gauges to gauge the quantity of water taken and the dry weather flow of water in the said river and they shall not take any water in excess of the quantity authorised to be taken.

(4) If the Corporation—

- (a) fail to construct or maintain in good order any such gauge as aforesaid or refuse to allow any person interested in the flow of water in the said river to inspect and examine any such gauge or any records made thereby or kept by them in connection therewith or to take copies of any such records; or

- (b) take any water from the said river contrary to the provisions of subsection (3) of this section;

they shall without prejudice to their civil liability if any to a person aggrieved be liable to a fine not exceeding fifty pounds

PART II.
—cont.

in respect of each day on which the offence has been committed or has continued.

(5) In this section the expression “gauge” includes a gauge weir or other apparatus for measuring the flow of water and such automatic recorders as may be reasonably required and the expression “approved” means approved by the Minister and for the purposes of this section the Northumberland Rivers Catchment Board shall be deemed to be interested in the flow of water in the said river.

(6) If any difference arises between the Corporation and the Minister with respect to the situations or designs of the said gauges or with respect to whether automatic recorders are required such difference shall be referred to the arbitration of an engineer to be nominated (unless otherwise agreed) on the application of either party after notice in writing to the other of them by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 and the Arbitration Act 1934 shall apply to any such arbitration.

52 & 53 Vict.
c. 49.
24 & 25 Geo. 5.
c. 14.

For protection
of North-
umberland
Rivers
Catchment
Board.

11. Notwithstanding anything in this Act the following provisions for the protection of the Northumberland Rivers Catchment Board (in this section referred to as “the board”) shall unless otherwise agreed in writing between the Corporation and the board apply and have effect:—

(1) (a) The Corporation before commencing to construct the waterwork by this Act authorised (which expression and the expression “the said waterwork” in this section shall include any of the works authorised by subsection (2) of the section of this Act of which the marginal note is “Power to construct waterwork” and any of the substituted works authorised by the section of this Act of which the marginal note is “Alteration of position of mains &c.”) shall submit to the board particulars thereof with plans sections and working drawings thereof for their reasonable approval. If the board do not within twenty-one days after the submission to them of any such particulars plans sections and drawings signify to the Corporation in writing their approval or disapproval thereof and their requirements in regard thereto they shall be deemed to have approved thereof;

(b) The said waterwork shall not be constructed otherwise than in accordance with such plans sections and drawings as may be approved by the board or if such approval be withheld as may be settled by

arbitration as provided in subsection (4) of this section and shall be constructed to the reasonable satisfaction of the board and the Corporation shall permit the engineer of the board from time to time during the construction of the said waterwork to inspect the same: PART II.
—cont.

- (2) The Corporation shall at all reasonable times afford to the engineer of the board or his duly authorised representatives access to the said waterwork for the purpose of inspection:
- (3) When the additional permanent supply of water referred to in the section of this Act of which the marginal note is "Temporary abstraction of water from river Wansbeck" is available to the Corporation the Corporation shall if reasonably so required by the board at their own expense remove the said waterwork and shall to the reasonable satisfaction of the board restore the river Wansbeck and the banks thereof to the condition in which they were immediately before the construction of the said waterwork and make good any damage caused to the said river or banks by or in consequence of the removal of the said waterwork:
- (4) Any dispute or difference which may arise under the foregoing provisions of this section between the board and the Corporation (save as to the construction of this section) shall be referred to and determined by arbitration:
- (5) If any difference arises between the Corporation and the board with respect to the use of the gauges referred to in the section of this Act of which the marginal note is "Temporary abstraction of water from river Wansbeck" such difference shall be referred to the arbitration of an engineer to be nominated (unless otherwise agreed) on the application of either party after notice in writing to the other of them by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 and the Arbitration Act 1934 shall apply to any such arbitration:
- (6) The provisions of this section shall be in addition to and not in derogation of any other provision of this Act enuring for the protection or benefit of the board.

12.—(1) Section 33 (Rate at which water is to be supplied for domestic purposes) of the Act of 1897 and section 28 (As to rateable value of two or more houses in one occupation), of the Act of 1934 shall be read and have effect as if for references in Amendment
of section 33
of Act of
1897 and
section 28 of
Act of 1934.

PART II.
—cont.

the said sections to rateable value there were substituted references to net annual value and as if for the definition in and proviso to the said section 33 of the said Act of 1897 of "rateable value" there was substituted a definition of net annual value and a proviso as follows (that is to say):—

"For the purposes of this section 'net annual value' shall mean that value as appearing in the valuation list in force on the first day of the period of twelve months covered by the rate:

Provided that if that value does not appear therein or if the water rate is chargeable on a part only of any hereditament entered therein the net annual value of the premises supplied shall be taken to be such sum or as the case may be such fairly apportioned part of the net annual value of the whole hereditament as in default of agreement may be determined by a court of summary jurisdiction."

(2) This section shall come into operation on the first day of April nineteen hundred and forty-eight.

PART III.

LANDS.

Power to
take lands.

13. The Corporation may enter upon take hold and use such of the lands delineated on the deposited plans and described in the deposited book of reference as are mentioned in the following paragraphs of this section and as may be required by the Corporation for the purposes respectively mentioned in those paragraphs:—

- (a) as regards the lands numbered on the deposited plan 1 2 3 and 4 in the parish of Mitford and 1 2 3 and 4 in the parish of Tranwell in the rural district of Morpeth for the purposes of the waterwork;
- (b) as regards the lands numbered on the deposited plan 4 5 and 6 in the urban district of Seaton Valley for the purposes of the water undertaking;
- (c) as regards the lands numbered on the deposited plan 85 to 90 in the borough for the purposes of a public hall assembly rooms winter gardens hotel and residential accommodation;
- (d) as regards the lands numbered on the deposited plan 63 64 65 83 and 84 in the borough for the purpose of providing open spaces or for such other purposes as the Minister may from time to time approve; and
- (e) as regards the lands numbered on the deposited plan 66 67 and 74 to 82 in the borough for the purposes

of the improvement and development of and in connection with adjoining lands of the Corporation.

PART III.
—cont.

14. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the lands created after the first day of November one thousand nine hundred and forty-six if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation
in case of
recently
altered
buildings
acquired by
Corporation.

15. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings authorised by this Act to be taken or used or any of them or any premises in respect of which a claim for compensation under this Act is received for the purpose of surveying and valuing the said lands and buildings and of inspecting the said premises without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses buildings or premises.

Power to
enter upon
property for
survey &c.

16.—(1) The Corporation may subject to the provisions of this Act enter into and carry into effect agreements with any person being the owner of or interested in any lands or property abutting on any portion of the lands which the Corporation may acquire under the powers of this Act with respect to the sale by the Corporation to such person of any lands or property for such consideration as may be agreed upon between the Corporation and such person and the Corporation may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or property required by the Corporation for the purposes of this Act.

Power to
Corporation
to make
agreements
with owners
of property
&c.

(2) Where any person is willing to agree with the Corporation that his land or any part thereof shall so far as his interest enables him to bind it be made subject either permanently or for a specified time to conditions restricting the development or use thereof the Corporation may if they think fit enter into an agreement (upon such terms as may be specified therein) with him to that effect and shall have power to enforce the agreement against persons deriving title under him in like

PART III.
—cont.

manner and to the like extent as if the Corporation were possessed of or interested in adjacent land and as if the agreement had been entered into for the benefit of that adjacent land. A person entering into an agreement with the Corporation under this subsection shall be entitled to require from the Corporation a copy of such agreement. Any such agreement shall be treated as a local land charge for the purposes of the

15 & 16 Geo. 5.
c. 22.

Land Charges Act 1925.

Extinction of
private rights
of way.

17.—(1) Any private right of way over land which the Corporation are authorised by this Act to acquire compulsorily shall if they so resolve and give notice of their resolution to the owner of the right be extinguished as from the acquisition by them of the land or as from the expiration of one month from the service of the notice whichever may be the later.

(2) The Corporation shall pay compensation to all persons interested in respect of any such right so extinguished and such compensation shall in case of dispute be settled in manner provided by the Lands Clauses Acts with respect to the taking of lands otherwise than by agreement.

Power to
acquire
easements
only.

18.—(1) The Corporation may in lieu of acquiring any of the lands which the Corporation are authorised by this Act to acquire compulsorily for the purposes of so much of the waterwork as will be laid underground acquire such easements and rights in such lands as they may require for the purpose of constructing placing laying inspecting maintaining cleansing repairing conducting managing renewing or enlarging such works and may give notice to treat in respect of such easements and rights describing the nature thereof and the restrictions subject to which the owners and occupiers may use the land and the provisions of the Lands Clauses Acts shall apply to such easements and rights as fully as if the same were lands within the meaning of such Acts.

(2) As regards any lands used by the Corporation for the purpose of any such works which are laid underground the Corporation shall not (unless they give notice to treat for such lands and not merely for easements or rights therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements or rights and any other restrictions imposed on the owners and occupiers have the same rights to use and cultivate the said lands at all times as if this Act had not been passed.

(3) Provided always that (except as to land forming part of a street) nothing in this section contained shall authorise

the Corporation to acquire by compulsion any such easement or right in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement or right only and (except as aforesaid) every notice to treat for the acquisition of an easement or right shall be endorsed with notice of this proviso.

PART III.
—cont.

19.—(1) If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Northumberland for the correction thereof.

Correction
of errors
in deposited
plans and book
of reference.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described.

(3) Such certificate shall be deposited with the clerk of the Northumberland county council if the lands are situate in the administrative county of Northumberland or with the town clerk if the lands are situate in the borough and a duplicate thereof shall be deposited in a case where the lands are situate in the urban district of Seaton Valley or the rural district of Morpeth with the clerk of the council of the urban district of Seaton Valley or with the clerk of the council of the rural district of Morpeth as the case may be and thereupon the deposited plans and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with the certificate.

(4) Such certificate and duplicates respectively shall be kept by such clerk of the county council town clerk and clerk of the said urban or rural district council (as the case may be) respectively with the other documents to which the same relate.

20. The powers of the Corporation for the compulsory purchase or taking of lands under the provisions of this Act shall cease on the expiration of three years from the first day of October one thousand nine hundred and forty-seven.

Period for
compulsory
purchase of
lands.

21. In relation to the land described in paragraph (c) of the section of this Act of which the marginal note is "Power to take lands" section 68 (Power to provide and let public

Application
of section 68
of Act of
1934 to
certain lands.

PART III.
—cont.

hall and other buildings) of the Act of 1934 shall be read and have effect as if among the buildings which the Corporation are thereby authorised (subject to the approval of the Minister) to erect hold furnish equip maintain and insure on such land there were included hotels and private residences.

Extinction
of rights
over certain
lands.

22.—(1) As from the first day of January one thousand nine hundred and forty-eight all rights enjoyed by the owners or occupiers of lands or premises abutting on Dockwray Square Northumberland Square and Walker Place in or over the said Dockwray Square Northumberland Square and Walker Place respectively shall be extinguished.

(2) The Corporation shall pay or make compensation (if any) for the rights so extinguished to the persons (being on the said first day of January persons entitled to exercise the said rights) who shall within a period of three months after the passing of this Act deliver to the Corporation a claim in writing to such compensation.

(3) The compensation to be paid or made by the Corporation under the foregoing provisions of this section to any person entitled to such compensation shall be settled in manner provided by the Lands Clauses Acts.

(4) As from the first day of January one thousand nine hundred and forty-eight Dockwray Square Northumberland Square and Walker Place shall be deemed to be lands acquired by the Corporation for the purpose of open spaces and the Corporation may exercise in regard thereto respectively the powers conferred upon them by the Public Health Acts in respect of public parks and pleasure grounds and shall not use the said lands for any other purpose except with the consent of the Minister.

(5) Within three months after the final determination of the compensation (if any) payable in respect of any rights extinguished by this section or the date of such extinction (whichever shall be the later) the Corporation shall produce to the Commissioners of Inland Revenue a King's printer's copy of this Act duly stamped with the ad valorem stamp duty payable upon an instrument (as defined by the Stamp Act 1891) effecting the release upon sale of such rights and in default of any such production as aforesaid the duty with interest thereon at the rate of five per centum per annum from the date of such final determination of the compensation or of such extinction shall be a debt due from the Corporation to His Majesty.

23. Notwithstanding the covenants which are contained in an indenture made the fifth day of October one thousand eight hundred and fifty-two between Richard Medcalf and George Hails of the first part the said Richard Medcalf and Richard Ayre (as copyhold trustees) of the second part and Thomas Barker of the third part and in a deed of conveyance made the eleventh day of June one thousand nine hundred and fourteen between Edward Pierre Martin Charles Robert Brightman Janet Robson Thomas Williamson and James Hogg of the one part and the Corporation of the other part and any other restrictions attaching to the user thereof the Corporation may appropriate and use for such purposes as the Minister may approve the land in the borough known as Spring Terrace Field and containing an area of 2.231 acres or thereabouts bounded on the north and east by Spring Terrace on the south by Albion Road on the west partly by Lovaine Terrace partly by public streets known as Springfield and Ashfield Grove respectively partly by two back streets and partly by dwelling-houses belonging to Percy Hair and Marjery Irvine Hair Mary Ann Harris and Alice Ann Sanderson.

PART III.
—cont.
Appropriation
of Spring
Terrace
Field.

24. The following provision for the protection of Dr. Barnardo's Homes National Incorporated Association (hereafter in this section called "the owners") shall unless otherwise agreed between the Corporation and the owners apply and have effect:—

For protection
of Dr.
Barnardo's
Homes.

- (1) If the Corporation acquire the property known as Beaconsfield comprising the lands numbered on the deposited plans 85 in the borough (hereafter in this section called "the property") they shall grant to the owners a lease of the property for a term of years expiring not earlier than seven years from the date on which the Corporation acquire the property or expiring at such later date as the Corporation may determine as being the date from which the Corporation require possession of the property for the purposes specified in paragraph (c) of the section of this Act of which the marginal note is "Power to take lands":
- (2) The Corporation may demand and if so demanded the owners shall pay a fair and economic rent for the property and the lease shall contain usual landlord and tenant covenants generally applicable to a repairing lease by a tenant for seven years or longer of premises used as a children's home without responsibility for the structure:

PART III.
—cont.

- (3) On the termination of the lease the Corporation shall pay to the owners such sum not exceeding in the aggregate the sum of two thousand five hundred pounds as is the equivalent of the moneys actually expended by the owners after the twelfth day of June one thousand nine hundred and forty-seven in respect of permanent improvements or alterations of the property or the provision of landlord's fixtures therein for the purpose of adapting the property as a residential home for children or otherwise for the furtherance of the charitable objects of the owners for the time being authorised.

For protection
of North-
Eastern
Electric
Supply
Company
Limited.

25. For the protection of the North-Eastern Electric Supply Company Limited (in this section called "the supply company") the following provisions shall unless otherwise agreed in writing between the supply company and the Corporation apply and have effect (that is to say):—

- (1) The Corporation in the exercise of the powers of this Act shall not take use or interfere with (so far as it is reasonably practicable for them to avoid doing so) any electric line apparatus or work of the supply company which at the date when the Corporation commence to exercise the said powers has been laid down erected or constructed by the supply company in exercise of statutory powers in existence at the date of the passing of this Act and is in existence within the limits of land to be acquired shown on the deposited plans. Provided that if in the exercise of the said powers by the Corporation it is reasonably necessary for the Corporation to interfere with any electric line apparatus or work of the supply company the provisions of section 15 of the Electric Lighting Act 1882 and of section 17 of the schedule to the Electric Lighting (Clauses) Act 1899 shall (mutatis mutandis and subject to the provisions of this section) apply in relation to such interference and the Corporation shall not interfere with any such electric line apparatus or work of the supply company except in accordance with and subject to such provisions:
- (2) If as the result of the acquisition by the Corporation of any of the lands numbered on the deposited plans 4 5 and 6 in the urban district of Seaton Valley for the purposes of the water undertaking any electric line apparatus or work of the supply company is rendered derelict or useless the Corporation shall pay to the supply company such sum as may be

agreed (or failing such agreement determined by arbitration) to be the value of such line apparatus or work:

PART III.
—cont.

- (3) Any difference which may arise between the supply company and the Corporation under this section shall be referred to and determined by an engineer to be agreed upon between the supply company and the Corporation or failing agreement appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject thereto the provisions of the Arbitration Act 1889 and the Arbitration Act 1934 shall apply to any such reference and determination.

PART IV.

STREETS AND BUILDINGS.

26. The Corporation when carrying out any private street works in any street may with the consent in writing of a majority in number and rateable value of the owners of houses and land in such street cause trees or shrubs to be planted and grass margins to be laid out in such street and erect guards or fences and otherwise do everything expedient for the protection of such trees shrubs and grass margins and any expense incurred by the Corporation under this section shall be deemed part of the expenses of carrying out the private street works in any such street:

Planting of trees in private streets.

Provided that no such tree shrub grass margin guard or fence shall be placed or laid out in such a situation as to hinder the reasonable use of the highway by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises adjacent to the said street:

Provided also that for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the execution of an undertaking authorised by an Act of Parliament and the Corporation shall be deemed to be the undertakers.

27. Notwithstanding anything contained in section 34 (As to supply of gas to public lamps in borough of Tynemouth) of the Newcastle-upon-Tyne and Gateshead Gas Order 1928 the Corporation shall have power from time to time to remove and discontinue such number of public lamps provided and erected by the Corporation as they think fit on paying to the Newcastle-upon-Tyne and Gateshead Gas Company the actual cost of and incident to disconnecting and removing

Revocation of provision as to public gas lamps in borough.

PART IV.
—cont.

the service pipe to each lamp so removed and discontinued and in addition if the Corporation remove and discontinue more than one hundred such lamps in any one year the sum of two pounds in respect of each lamp so discontinued and removed in excess of that number in that year.

Power to
make bye-
laws with
respect to
houses let in
lodgings or
occupied by
members of
more than
one family.
26 Geo. 5. &
1 Edw. 8.
c. 51.

28.—(1) The Corporation may make and enforce with respect to houses not being houses which are occupied or are of a type suitable for occupation by persons of the working classes byelaws for the purposes specified in paragraphs (a) to (f) (inclusive) of subsection (1) of section 6 of the Housing Act 1936 and any such byelaws in addition to any other penalty may prohibit the letting for occupation by members of more than one family of any such house unless the byelaws are complied with subject in the case of houses so let or occupied at the time when the byelaws come into force to the allowance of a reasonable time for the execution of any works necessary for compliance with the byelaws.

(2) The operation of any byelaws made under this section for any of the specified purposes shall be limited to houses let in lodgings or occupied by members of more than one family.

(3) Section 7 (Enforcement of execution of works to comply with byelaws) of the Housing Act 1936 shall apply to byelaws made under this section as if they were byelaws made under that section and the Corporation were the local authority by whom the byelaws are to be enforced.

PART V.

HUMAN FOOD.

Registration
of hawkers of
food and
premises.

29.—(1) As from the commencement of this section the following provisions shall have effect in the borough:—

- (a) no person other than a person keeping open shop for the sale of food shall either by himself or by any person employed by him sell offer or expose for sale any food from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is registered with the Corporation;
- (b) no premises shall be used as storage accommodation for any food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle unless the premises are registered as afore-said.

(2) An application for a person to be registered under this section shall be made by himself and an application for

premises to be so registered shall be made by the owner or occupier or intending owner or occupier thereof.

PART V.
—cont.

(3) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(4) (a) The Corporation may refuse to register any such person or premises as is or are referred to in subsection (i) of this section or (after giving one month's notice in writing to the person registered or in whose name any such premises are registered) may revoke the registration of any such person or premises if they are satisfied (as regards any such person) that the public health is or is likely to be endangered by any act or default of such person in relation to the quality storage or distribution of the food or (as regards any such premises) that such premises are not suitable to be used for the purposes aforesaid:

Provided that before refusing or revoking such registration the Corporation shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before them not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises. Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

(b) If the Corporation refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction (under the section of this Act of which the marginal note is "As to appeals") against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

(5) The medical officer the sanitary inspector or any other officer of the Corporation appointed for the purpose shall have power at all reasonable times to enter and inspect any premises in the borough in respect of which an application has been received for registration under the provisions of this section and also any premises which he shall have reason to believe are being used as storage accommodation for food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle.

PART V.
—cont.

(6) The Corporation shall keep a register of the persons and premises registered under the provisions of this section.

(7) In this section the expression “ food ” does not include any substance contained in containers of such materials and so closed as to exclude all risk of contamination.

(8) (a) This section shall come into operation on but not until such date as may be fixed by a resolution of the Corporation of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the borough. Every such advertisement shall also state the effect of this section and the date specified therein as the date on which it shall come into operation shall not be less than one month after the date of publication of the advertisement. Provided that an application for the registration of any person or premises may be made and determined before this section comes into operation.

(b) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(c) It shall be lawful for any person who when this section comes into operation—

(i) was carrying on any such business or using any premises for any such purpose as are respectively referred to in subsection (1) of this section; and

(ii) has made application in accordance with the provisions of this Act for such registration as is required by this section;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of the section of this Act of which the marginal note is “ As to appeals.”

PART VI.

FINANCE.

Power to
borrow.

30.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within such periods as the Corporation may determine not exceeding the

respective period mentioned in the third column of the said table (namely):—

PART VI.
—cont.

(1)	(2)	(3)
Purpose.	Amount.	Period for repayment.
(a) The purchase of lands and easements.	£ 70,000	Sixty years from the date or dates of borrowing.
(b) The construction of the waterwork.	15,000	Fifty years from the date or dates of borrowing.
(c) The payment of the costs charges and expenses of this Act.	The sum requisite	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Minister borrow such further sums (if any) as may be necessary for either of the purposes (a) or (b) mentioned in the said table or for any other purpose of this Act.

(b) Provision for the repayment of any sums borrowed under this subsection shall be made within such period as may be prescribed by the Minister.

(3) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

31. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

Saving for Local
Authorities Loans
Act 1945.
8 & 9 Geo. 6, c. 18.

32. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act as hereinafter defined) otherwise than in compliance with the provisions of any Order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for
powers of
Treasury.
9 & 10 Geo. 6.
c. 58.

33. On the death of an employee (which expression in this section includes a former employee or pensioner of the Corporation or other person) to whom or to whose personal representative a sum is due from the Corporation on account of salary wages superannuation allowance gratuity grant or repayment of contributions to any superannuation fund or of contributions otherwise made in respect of superannuation

Payment of
funeral
expenses of
deceased
employees.

PART VI.
—cont.9 & 10 Geo. 6.
c. 67.

with or without interest the Corporation may if they think fit pay out of the above sum the funeral expenses of the deceased employee or so much thereof as they consider reasonable having regard to any death grant which has been or is to be paid under section 22 of the National Insurance Act 1946 and the amount of the expenses so paid shall be deemed to have been paid for the personal representative of the person to whom the sum was due from the Corporation and the Corporation and any officer of the Corporation making such payment shall be discharged from all liability in respect of such payment.

PART VII.

MISCELLANEOUS.

Power to
make bye-
laws with
respect to
Preston
North Shields
cemetery.
42 & 43 Vict.
c. 31.

34. The power of the Corporation under the Public Health (Interments) Act 1879 to make byelaws with respect to the management of a cemetery shall be exerciseable by the Corporation with respect to the place for the interment of the dead in the borough known as the Preston North Shields cemetery as though such cemetery had been provided in pursuance of the power in that behalf contained in the said Act of 1879.

School
agreements.

35.—(1) Any agreement entered into between the Corporation and the parent or guardian of a pupil at any secondary school may make provision for the payment by such parent or guardian to the Corporation of any sum not exceeding ten pounds in the event of the pupil ceasing without reasonable cause to attend such school before the date fixed by such agreement for the pupil to cease such attendance and the Corporation shall be entitled without proof of any actual damage incurred by reason of such pupil ceasing to attend such school to recover from such parent or guardian any sum not exceeding the sum specified in the agreement which the court may think fit to award in all the circumstances of the case.

(2) For the purposes of this section the expression “secondary school” includes—

7 & 8 Geo. 6.
c. 31.

(a) a secondary school as defined by section 114 of the Education Act 1944; and

(b) a school in respect of which grants are paid by the Minister of Education under regulations made in pursuance of paragraph (b) of subsection (1) of section 100 of that Act and in which secondary education as defined by section 8 of the Act is provided.

PART VIII.

GENERAL.

36. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Act of 1933 shall be the Minister. Confirming authority for byelaws.

37. Section 298 of the Act of 1936 shall apply to offences created by or under Part IV (Streets and buildings) and Part V (Human food) of this Act as if they were offences created by or under that Act. Restriction on right to prosecute.

38.—(1) Any person aggrieved by any requirement refusal or other decision of the Corporation or of any officer thereof under Part IV (Streets and buildings) or Part V (Human food) of this Act may appeal to a court of summary jurisdiction. As to appeals.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the Corporation with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

(a) no proceedings in respect of any failure to execute the work or take the action shall be taken;

PART VIII.
—cont.

(b) the Corporation shall not execute such work or take such action; and

(c) any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon any appeal under this Act a court varies or reverses any requirement refusal or other decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

In executing work for owner Corporation liable for negligence only.

39. Whenever the Corporation the surveyor or the sanitary inspector under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or the sanitary inspector or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses payable by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Compensation how to be determined.

40. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

Application of provisions of Act of 1936.

41. The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Section 271 (Interpretation of “provide”);

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

Section 277 (Power of councils to require information as to ownership of premises);

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 286 (Proof of resolutions &c.);

Section 287 (Power to enter premises);

Section 288 (Penalty for obstructing execution of Act);

Section 289 (Power to require occupier to permit works to be executed by owner);

Section 290 (Provision as to appeals against and enforcement of notices requiring execution of works);

Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);

Section 292 (Power to make a charge in respect of establishment expenses);

Section 293 (Recovery of expenses &c.);

Section 294 (Limitation of liability of certain owners);

Section 295 (Power of local authority to grant charging orders);

Section 296 (Summary proceedings for offences);

Section 297 (Continuing offences and penalties);

Section 299 (Inclusion of several sums in one complaint &c.);

Section 304 (Judges and justices not to be disqualified by liability to rates);

Section 328 (Powers of Act to be cumulative);

Section 329 (Saving for certain provisions of the Land Charges Act 1925):

Provided that the said sections 271 275 277 283 284 285 286 287 288 289 290 291 292 293 294 295 296 297 299 304 and 329 shall only apply to the provisions contained in Part IV (Streets and buildings) and Part V (Human food) of this Act.

42. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly. Inquiries by Minister.

43.—(1) The provisions of the Town and Country Planning Acts and of any Order scheme or regulation made under those Acts or under any enactment repealed by those Acts Saving for town and country planning.

PART VIII.
—cont.

so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

(2) In this section the expression "Town and Country Planning Acts" means—

22 & 23 Geo. 5.
c. 48.

6 & 7 Geo. 5.
c. 29.

9 & 10 Geo. 6.
c. 68.

(a) the Town and Country Planning Acts 1932 and 1943 the Town and Country Planning Act 1944 and the New Towns Act 1946; and

(b) any public general Act passed or to be passed in the present session repealing amending or extending the provisions of those Acts.

Arbitration.

44. Where under this Act any question or dispute (other than a question or dispute for the determination of which provision is made by the Lands Clauses Acts) is to be referred to or determined by an arbitrator or arbitration the reference shall be subject to the provisions of the Arbitration Acts 1889 to 1934 and except where otherwise provided the arbitrator shall failing agreement be appointed by the President of the Institution of Civil Engineers on the application of either party to the question or dispute after notice in writing to the other.

Crown
rights.

45. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

46. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of such other funds rates and revenues and in such proportions as the Corporation may by resolution determine or out of moneys to be borrowed under this Act for that purpose.

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